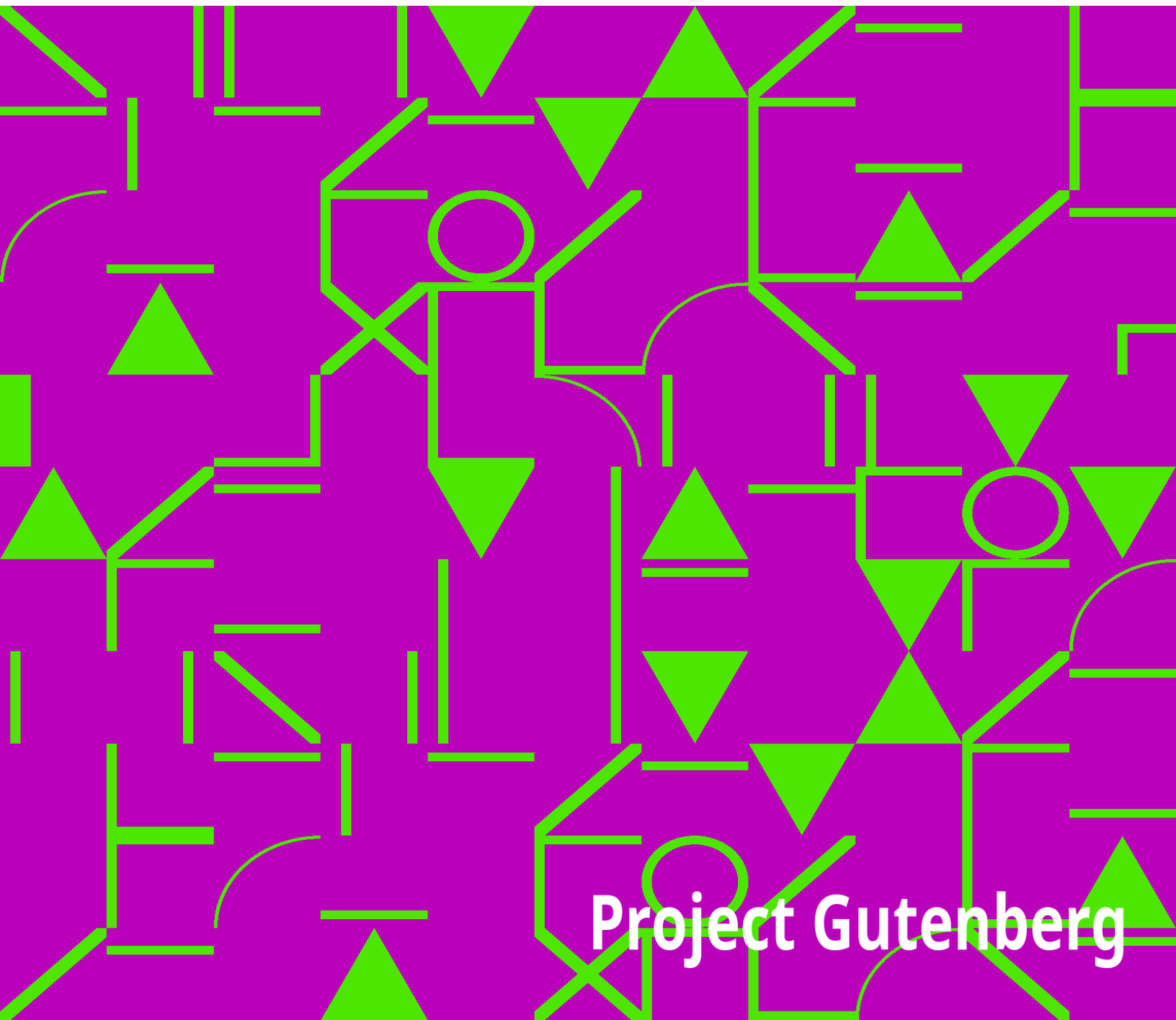


Myths and Legends of Our Own Land — Volume 05 : Lights and shadows of the South

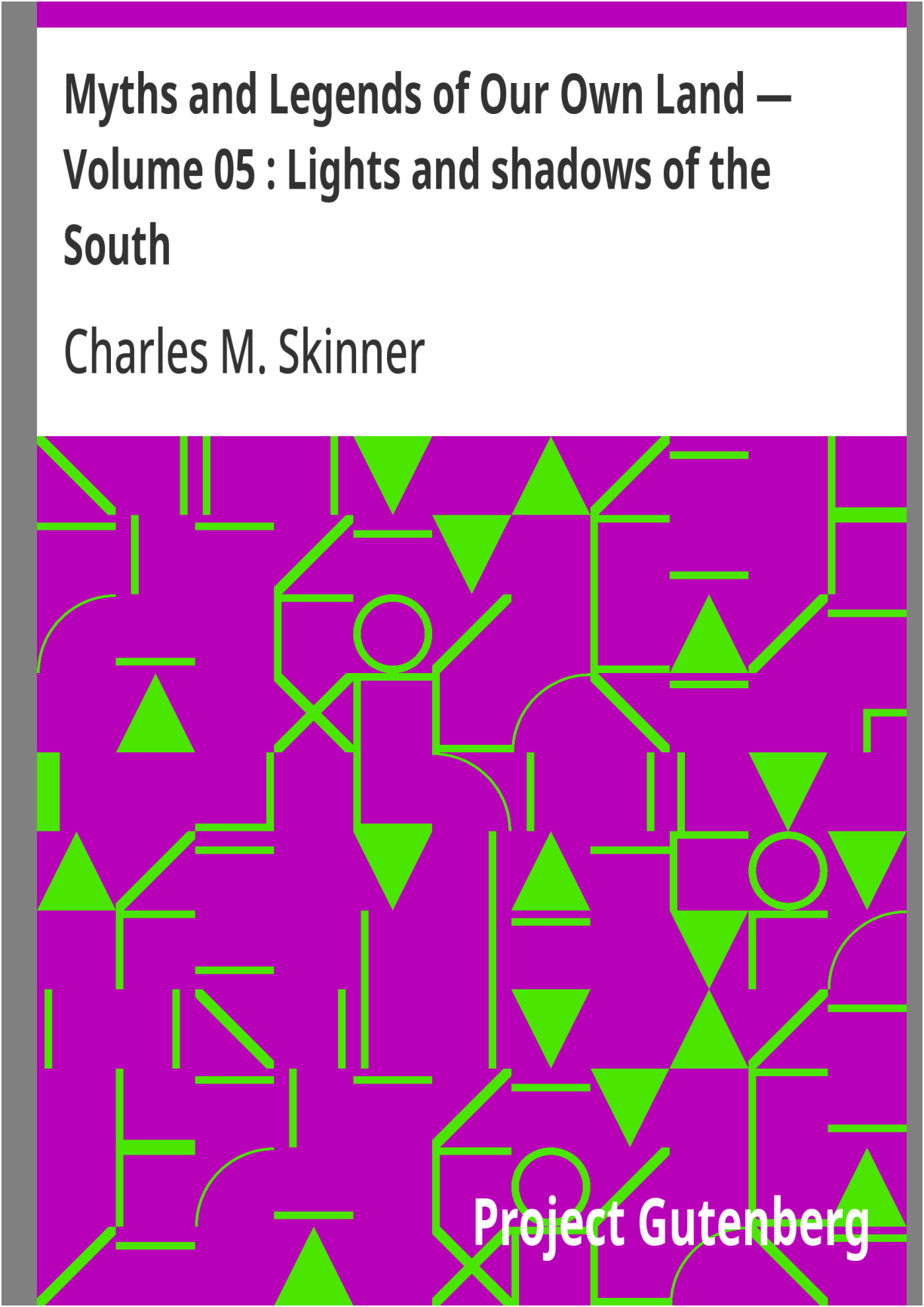
Charles M. Skinner



Project Gutenberg

**Myths and Legends of Our Own Land —
Volume 05 : Lights and shadows of the
South**

Charles M. Skinner



Project Gutenberg

The Project Gutenberg eBook of Myths and Legends of Our Own Land — Volume 05 : Lights and shadows of the South

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Myths and Legends of Our Own Land — Volume 05 : Lights and shadows of the South

Author: Charles M. Skinner

Release date: December 14, 2004 [eBook #6610]

Most recently updated: December 29, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/6610

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK MYTHS AND
LEGENDS OF OUR OWN LAND — VOLUME 05 : LIGHTS AND
SHADOWS OF THE SOUTH ***

Produced by David Widger

MYTHS AND LEGENDS OF OUR OWN LAND

By
Charles M. Skinner

Vol. 5.

LIGHTS AND SHADOWS OF THE SOUTH

CONTENTS:

The Swim at Indian Head
The Moaning Sisters
A Ride for a Bride
Spooks of the Hiawassee
Lake of the Dismal Swamp
The Barge of Defeat
Natural Bridge
The Silence Broken
Siren of the French Broad
The Hunter of Calawassee
Revenge of the Accabee
Toccoa Falls
Two Lives for One
A Ghostly Avenger
The Wraith Ringer of Atlanta
The Swallowing Earthquake
The Last Stand of the Biloxi
The Sacred Fire of Natchez
Pass Christian
The Under Land

LIGHTS AND SHADOWS OF THE SOUTH

THE SWIM AT INDIAN HEAD

At Indian Head, Maryland, are the government proving-grounds, where the racket of great guns and splintering of targets are a deterrent to the miscellaneous visitations of picnics. Trouble has been frequently associated with this neighborhood, as it is now suggested in the noisy symbolry of war. In prehistoric days it was the site of an aboriginal town, whose denizens were like other Indians in their love for fight and their willingness to shed blood. Great was the joy of all these citizens when a scouting party came in, one day, bringing with them the daughter of one of their toughest old hunters and a young buck, from another faction, who had come a-courting; her in the neighboring shades.

Capture meant death, usually, and he knew it, but he held himself proudly and refused to ask for mercy. It was resolved that he should die. The father's scorn for his daughter, that she should thus consort with an enemy, was so great that he was on the point of offering her as a joint sacrifice with her lover, when she fell on her knees before him and began a fervent appeal, not for herself, but for the prisoner. She would do anything to prove her strength, her duty, her obedience, if they would set him free. He had done injury to none. What justice lay in putting him to the torture?

Half in earnest, half in humor, the chief answered, "Suppose we were to set him on the farther shore of the Potomac, do you love him well enough to swim to him?"

"I do."

"The river is wide and deep."

"I would drown in it rather than that harm should come to him."

The old chief ordered the captive, still bound, to be taken to a point on the Virginia shore, full two miles away, in one of their canoes, and when the boat was on the water he gave the word to the girl, who instantly plunged in and followed it. The chief and the father embarked in another birch—ostensibly to see that the task was honestly fulfilled; really, perhaps, to see that the damsel did not drown. It was a long course, but the maid was not as many of our city misses are, and she reached the bank, tired, but happy, for she had saved her lover and gained him for a husband.

THE MOANING SISTERS

Above Georgetown, on the Potomac River, are three rocks, known as the Three Sisters, not merely because of their resemblance to each other—for they are parts of a submerged reef—but because of a tradition that, more than a hundred years ago, a boat in which three sisters had gone out for a row was swung against one of these rocks. The day was gusty and the boat was upset. All three of the girls were drowned. Either the sisters remain about this perilous spot or the rocks have prescience; at least, those who live near them on the shore hold one view or the other, for they declare that before every death on the river the sisters moan, the sound being heard above the lapping of the waves. It is different from any other sound in nature. Besides, it is an unquestioned fact that more accidents happen here than at any other point on the river.

Many are the upsets that have occurred and many are the swimmers who have gone down, the dark forms of the sisters being the last shapes that their water-blurred eyes have seen. It is only before a human life is to be yielded that this low wailing comes from the rocks, and when, on a night in May, 1889, the sound floated shoreward, just as the clock in Georgetown struck twelve, good people who were awake sighed and uttered a prayer for the one whose doom was so near at hand. Twelve hours later, at noon, a shell came speeding down the Potomac, with a young athlete jauntily pulling at the oars. As he neared the Three Sisters his boat appeared to be caught in an

eddy; it swerved suddenly, as if struck; then it upset and the rower sank to his death.

A RIDE FOR A BRIDE

When the story of bloodshed at Bunker Hill reached Bohemia Hall, in Cecil County, Maryland, Albert De Courcy left his brother Ernest to support the dignity of the house and make patriotic speeches, while he went to the front, conscious that Helen Carmichael, his affianced wife, was watching, in pride and sadness, the departure of his company. Letters came and went, as they always do, until rumor came of a sore defeat to the colonials at Long Island; then the letters ceased.

It was a year later when a ragged soldier, who had stopped at the hall for supper, told of Albert's heroism in covering the retreat of Washington. The gallant young officer had been shot, he said, as he attempted to swim the morasses of Gowanus. But this soldier was in error. Albert had been vexatiously bogged on the edge of the creek. While floundering in the mud a half dozen sturdy red-coats had lugged him out and he was packed off to the prison-ships anchored in the Wallabout. In these dread hulks, amid darkness and miasma, living on scant, unwholesome food, compelled to see his comrades die by dozens every day and their bodies flung ashore where the tide lapped away the sand thrown over them, De Courcy wished that death instead of capture had been his lot, for next to his love he prized his liberty.

One day he was told off, with a handful of others, for transfer to a stockade on the Delaware, and how his heart beat when he learned that the

new prison was within twenty miles of home! His flow of spirits returned, and his new jailers liked him for his frankness and laughed at his honest expletives against the king. He had the liberty of the enclosure, and was not long in finding where the wall was low, the ditch narrow, and the abatis decayed—knowledge that came useful to him sooner than he expected, for one day a captured horse was led in that made straight for him with a whinny and rubbed his nose against his breast.

"Why!" he cried,—"it's Cecil! My horse, gentlemen—or, was. Not a better hunter in Maryland!"

"Yes," answered one of the officers. "We've just taken him from your brother. He's been stirring trouble with his speeches and has got to be quieted. But we'll have him to-day, for he's to be married, and a scouting party is on the road to nab him at the altar."

"Married! My brother! What! Ernest, the lawyer, the orator? Ho, ho! Ah, but it's rather hard to break off a match in that style!"

"Hard for him, maybe; but they say the lady feels no great love for him. He made it seem like a duty to her, after her lover died."

"How's that? Her own—what's her name?"

"Helen—Helen Carmichael, or something like that."

Field and sky swam before De Courcy's eyes for a moment; then he resumed, in a calm voice, and with a pale, set face, "Well, you're making an unhappy wedding-day for him. If he had Cecil here he would outride you all. Ah, when I was in practice I could ride this horse and snatch a pebble from the ground without losing pace!"

"Could you do it now?"

"I'm afraid long lodging in your prison-ships has stiffened my joints, but I'd venture at a handkerchief."

"Then try," said the commandant.

De Courcy mounted into the saddle heavily, crossed the grounds at a canter, and dropped a handkerchief on the grass. Then, taking a few turns for practice, he started at a gallop and swept around like the wind. His seat was so firm, his air so noble, his mastery of the steed so complete, that a cheer of admiration went up. He seemed to fall headlong from the saddle, but was up again in a moment, waving the handkerchief gayly in farewell—for he kept straight on toward the weak place in the wall. A couple of musket-balls hummed by his ears: it was neck or nothing now! A tremendous leap! Then a ringing cry told the astonished soldiers that he had reached the road in safety. Through wood and thicket and field he dashed as if the fiend were after him, and never once did he cease to urge his steed till he reached the turnpike, and saw ahead the scouting party on its way to arrest his brother.

Turning into a path that led to the rear of the little church they were so dangerously near, he plied hands and heels afresh, and in a few moments a wedding party was startled by the apparition of a black horse, all in a foam, ridden by a gaunt man, in torn garments, that burst in at the open chancel-door. The bridegroom cowered, for he knew his brother. The bride gazed in amazement. "'Tis the dead come to life!" cried one. De Courcy had little time for words. He rode forward to the altar, swung Helen up behind him, and exclaimed, "Save yourselves! The British are coming! To horse, every one, and make for the manor!" There were shrieks and fainting—and perhaps a little cursing, even if it was in church,—and when the squadron rode up most of the company were in full flight. Ernest was taken, and next morning held his brother's place on the prison-list, while, as arrangements

had been made for a wedding, there was one, and a happy one, but Albert was the bridegroom.

SPOOKS OF THE HIAWASSEE

The hills about the head of the Hiawassee are filled with "harnts," among them many animal ghosts, that ravage about the country from sheer viciousness. The people of the region, illiterate and superstitious, have unquestioning faith in them. They tell you about the headless bull and black dog of the valley of the Chatata, the white stag of the Sequahatchie, and the bleeding horse of the Great Smoky Mountains—the last three being portents of illness, death, or misfortune to those who see them.

Other ghosts are those of men. Near the upper Hiawassee is a cave where a pile of human skulls was found by a man who had put up his cabin near the entrance. For some reason, which he says he never understood, this farmer gathered up the old, bleached bones and dumped them into his shed. Quite possibly he did not dare to confess that he wanted them for fertilizers or to burn them for his poultry.

Night fell dark and still, with a waning moon rising over the mountains—as calm a night as ever one slept through. Along toward the middle of it a sound like the coming of a cyclone brought the farmer out of his bed. He ran to the window to see if the house were to be uprooted, but the forest was still, with a strange, oppressive stillness—not a twig moving, not a cloud veiling the stars, not an insect chirping. Filled with a vague fear, he tried to waken his wife, but she was like one in a state of catalepsy.

Again the sound was heard, and now he saw, without, a shadowy band circling about his house like leaves whirled on the wind. It seemed to be made of human shapes, with tossing arms—this circling band—and the sound was that of many voices, each faint and hollow, by itself, but loud in aggregate. He who was watching realized then that the wraiths of the dead whose skulls he had purloined from their place of sepulture were out in lament and protest. He went on his knees at once and prayed with vigor until morning. As soon as it was light enough to see his way he replaced the skulls, and was not troubled by the "haunts" again. All the gold in America, said he, would not tempt him to remove any more bones from the cave-tombs of the unknown dead.

LAKE OF THE DISMAL SWAMP

Drummond's Pond, or the Lake of the Dismal Swamp, is a dark and lonely tarn that lies in the centre of this noted Virginia morass. It is, in a century-old tradition, the Styx of two unhappy ghosts that await the end of time to pass its confines and enjoy the sunshine of serener worlds. A young woman of a family that had settled near this marsh died of a fever caused by its malarial exhalations, and was buried near the swamp. The young man to whom she was betrothed felt her loss so keenly that for days he neither ate nor slept, and at last broke down in mind and body. He recovered a measure of physical health, after a time, but his reason was hopelessly lost.

It was his hallucination that the girl was not dead, but had been exiled to the lonely reaches of this watery wilderness. He was heard to mutter, "I'll find her, and when Death comes I'll hide her in the hollow of a cypress until he passes on." Evading restraint, he plunged into the fen, and for some days he wandered there, eating berries, sleeping on tussocks of grass, with water-snakes crawling over him and poisonous plants shedding their baneful dew on his flesh. He came to the lake at last. A will-o'-the-wisp played along the surface. "'Tis she!" he cried. "I see her, standing in the light." Hastily fashioning a raft of cypress boughs he floated it and pushed toward the centre of the pond, but the eagerness of his efforts and the rising of a wind dismembered the frail platform, and he fell into the black water to rise no more. But often, in the night, is seen the wraith of a canoe, with a fire-fly

lamp burning on its prow, restlessly urged to and fro by two figures that seem to be vainly searching for an exit from the place, and that are believed to be those of the maiden and her lover.

THE BARGE OF DEFEAT

Rappahannock River, in Virginia, used to be vexed with shadowy craft that some of the populace affirmed to be no boats, but spirits in disguise. One of these apparitions was held in fear by the Democracy of Essex County, as it was believed to be a forerunner of Republican victory. The first recorded appearance of the vessel was shortly after the Civil War, on the night of a Democratic mass-meeting at Tappahannock. There were music, refreshments, and jollity, and it was in the middle of a rousing speech that a man in the crowd cried, "Look, fellows! What is that queer concern going down the river?"

The people moved to the shore, and by the light of their torches a hulk was seen drifting with the stream—a hulk of fantastic form unlike anything that sails there in the daytime. As it came opposite the throng, the torchlight showed gigantic negroes who danced on deck, showing horrible faces to the multitude. Not a sound came from the barge, the halloos of the spectators bringing no response, and some boatmen ventured into the stream, only to pull back in a hurry, for the craft had become so strangely enveloped in shadow that it seemed to melt into air.

Next day the Democracy was defeated at the polls, chiefly by the negro vote. In 1880 it reappeared, and, as before, the Republicans gained the day. Just before the election of 1886, Mr. Croxton, Democratic nominee for Congress, was haranguing the people, when the cry of "The Black Barge!"

arose. Argument and derision were alike ineffectual with the populace. The meeting broke up in silence and gloom, and Mr. Croxton was defeated by a majority of two thousand.

NATURAL BRIDGE

Though several natural bridges are known in this country, there is but one that is famous the world over, and that is the one which spans Clear Creek, Virginia—the remnant of a cave-roof, all the rest of the cavern having collapsed. It is two hundred and fifteen feet above the water, and is a solid mass of rock forty feet thick, one hundred feet wide, and ninety feet in span. Thomas Jefferson owned it; George Washington scaled its side and carved his name on the rock a foot higher than any one else. Here, too, came the youth who wanted to cut his name above Washington's, and who found, to his horror, when half-way up, that he must keep on, for he had left no resting-places for his feet at safe and reachable distances—who, therefore, climbed on and on, cutting handhold and foothold in the limestone until he reached the top, in a fainting state, his knife-blade worn to a stump. Here, too, in another tunnel of the cavern, flows Lost River, that all must return to, at some time, if they drink of it. Here, beneath the arch, is the dark stain, so like a flying eagle that the French officer who saw it during the Revolution augured from it a success for the united arms of the nations that used the eagle as their symbol.

The Mohegans knew this wonder of natural masonry, for to this point they were pursued by a hostile tribe, and on reaching the gulf found themselves on the edge of a precipice that was too steep at that point to descend. Behind them was the foe; before them, the chasm. At the

suggestion of one of their medicine-men they joined in a prayer to the Great Spirit for deliverance, and when again they looked about them, there stood the bridge. Their women were hurried over; then, like so many Horatii, they formed across this dizzy highway and gave battle. Encouraged by the knowledge that they had a safe retreat in case of being overmastered, they fought with such heart that the enemy was defeated, and the grateful Mohegans named the place the Bridge of God.

THE SILENCE BROKEN

It was in 1734 that Joist Hite moved from Pennsylvania to Virginia, with his wife and boys, and helped to make a settlement on the Shenandoah twelve miles south of Woodstock. When picking berries at a distance from the village, one morning, the boys were surprised by Indians, who hurried with them into the wilderness before their friends could be apprised. Aaron, the elder, was strong, and big of frame, with coarse, black hair, and face tanned brown; but his brother was small and fair, with blue eyes and yellow locks, and it was doubtless because he was a type of the hated white race that the Indians spent their blows and kicks on him and spared the sturdy one. Aaron was wild with rage at the injuries put upon his gentle brother, but he was bound and helpless, and all that he could do was to encourage him to bear a stout heart and not to fall behind.

But Peter was too delicate to keep up, and there came a day when he could go no farther. The red men consulted for a few moments, then all of them stood apart but one, who fitted an arrow to his bow. The child's eyes grew big with fear, and Aaron tore at his bonds, but uselessly, and shouted that he would take the victim's place, but no one understood his speech, and in another moment Peter lay dead on the earth, with an arrow in his heart. Aaron gave one cry of hate and despair, and he, too, sank unconscious. On coming to himself he found that he was in a hut of boughs, attended by an old Indian, who told him in rude English that he was recovering from an

illness of several weeks' duration, and that it was the purpose of his tribe to adopt him. When the lad tried to protest he found to his amazement that he could not utter a sound, and he learned from the Indian that the fever had taken away his tongue. In the dulness and weakness of his state he submitted to be clothed in Indian dress, smeared with a juice that browned his skin, and greeted by his brother's slayers as one of themselves. When he looked into a pool he found that he had, to all intents, become an Indian. In time he became partly reconciled to this change, for he did not know and could not ask where the white settlements lay; his appearance and his inability to speak would prevent his recognition by his friends, the red men were not unkind to him, and every boy likes a free and out-door life. They taught him to shoot with bow and arrow, but they kept him back if a white settlement was to be plundered.

Three years had elapsed, and Aaron, grown tall and strong, was a good hunter who stood in favor with the tribe. They had roamed back to the neighborhood of Woodstock, when, at a council, Aaron overheard a plot to fall on the village where his parents lived. He begged, by signs, to be allowed to go with them, and, believing that he could now be trusted, they offered no objection. Stoic as he had grown to be, he could not repress a tear as he saw his old home and thought of the peril that it stood in. If only he could give an alarm! The Indians retired into the forest to cook their food where the smoke could not be seen, while Aaron lingered at the edge of the wood and prayed for opportunity. He was not disappointed. Two girls came up through the perfumed dusk, driving cows from the pasture, and as they drew near, Aaron, pretending not to see them, crawled out of the bush with his weapons, and made a show of stealthily examining the town. The girls came almost upon him and screamed, while he dashed into the wood in affected surprise and regained the camp. The Indians had heard and seen nothing. The girls would surely give the alarm in town.

One by one the lights of the village went out, and when it seemed locked in sleep the red marauders crept toward the nearest house—that of Joist Hite. They arose together and rushed upon it, but at that moment a gun was fired, an Indian fell, and in a few seconds more the settlers, whom the girls had not failed to put on their guard, were hurrying from their hiding-places, firing into the astonished crowd of savages, who dashed for the woods again, leaving a dozen of their number on the ground. Aaron remained quietly standing near his father's house, and he was captured, as he hoped to be. When he saw how his parents had aged with time and grief he could not repress a tear, but to his grief was added terror when his father, after looking him steadily in the eye without recognition, began to load a pistol. "They killed my boys," said he, "and I am going to kill him. Bind him to that tree."

In vain the mother pleaded for mercy; in vain the dumb boy's eyes appealed to his father's. He was not afraid to die, and would do so gladly to have saved the settlement; but to die by his father's hand! He could not endure it. He was bound to a tree, with the light of a fire shining into his face.

The old man, with hard determination, raised the weapon and aimed it slowly at the boy's heart. A surge of feeling shook the frame of the captive—he threw his whole life into the effort—then the silence of three years was broken, and he cried, "Father!" A moment later his parents were sobbing joyfully, and he could speak to them once more.

SIREN OF THE FRENCH BROAD

Among the rocks east of Asheville, North Carolina, lives the Lorelei of the French Broad River. This stream—the Tselica of the Indians—contains in its upper reaches many pools where the rapid water whirls and deepens, and where the traveller likes to pause in the heats of afternoon and drink and bathe. Here, from the time when the Cherokees occupied the country, has lived the siren, and if one who is weary and downcast sits beside the stream or utters a wish to rest in it, he becomes conscious of a soft and exquisite music blending with the splash of the wave.

Looking down in surprise he sees—at first faintly, then with distinctness—the form of a beautiful woman, with hair streaming like moss and dark eyes looking into his, luring him with a power he cannot resist. His breath grows short, his gaze is fixed, mechanically he rises, steps to the brink, and lurches forward into the river. The arms that catch him are slimy and cold as serpents; the face that stares into his is a grinning skull. A loud, chattering laugh rings through the wilderness, and all is still again.

THE HUNTER OF CALAWASSEE

Through brisk November days young Kedar and his trusty slave, Lauto, hunted along the Calawassee, with hope to get a shot at a buck—a buck that wore a single horn and that eluded them with easy, baffling gait whenever they met it in the fens. Kedar was piqued at this. He drained a deep draught and buttoned his coat with an air of resolution. "Now, by my soul," quoth he, "I'll have that buck to-day or die myself!" Then he laughed at the old slave, who begged him to unsay the oath, for there was something unusual about that animal—as it ran it left no tracks, and it passed through the densest wood without halting at trees or undergrowth. "Bah!" retorted the huntsman. "Have up the dogs. If that buck is the fiend himself, I'll have him before the day is out!" The twain were quickly in their saddles, and they had not been long in the wood before the one-horned buck was seen ahead, trotting with easy pace, yet with marvellous swiftness.

Kedar, who was in advance, whipped up his horse and followed the deer into a cypress grove near the Chechesee. As the game halted at a pool he fired. The report sounded dead in the dense wood, and the deer turned calmly, watched his pursuer until he was close at hand, then trotted away again. All day long he held the chase. The dogs were nowhere within sound, and he galloped through the forest, shouting and swearing like a very devil, beating and spurring the horse until the poor creature's head and flanks were reddened with blood. It was just at sunset that Kedar found himself again on

the bank of the Calawassee, near the point he had left in the morning, and heard once more the baying of his hounds. At last his prey seemed exhausted, and, swimming the river, it ran into a thicket on the opposite side and stood still. "Now I have him!" cried the hunter. "Hillio, Lauto! He's mine!" The old negro heard the call and hastened forward. He heard his master's horse floundering in the swamp that edged the river—then came a splash, a curse, and as the slave arrived at the margin a few bubbles floated on the sluggish current. The deer stood in the thicket, staring with eyes that blazed through the falling darkness, and, with a wail of fear and sorrow, old Lauto fled the spot.

REVENGE OF THE ACCABEE

The settlement made by Lord Cardross, near Beaufort, South Carolina, was beset by Spaniards and Indians, who laid it in ashes and slew every person in it but one. She, a child of thirteen, had supposed the young chief of the Accabees to be her father, as he passed in the smoke, and had thrown herself into his arms. The savage raised his axe to strike, but, catching her blue eye raised to his, more in grief and wonder than alarm, the menacing hand fell to his side, and, tossing the girl lightly to a seat on his shoulder, he strode off into the forest. Mile after mile he bore her, and if she slept he held her to his breast as a father holds a babe. When she awoke it was in his lodge on the Ashley, and he was smiling in her face. The chief became her protector; but those who marked, with the flight of time, how his fierceness had softened, knew that she was more to him than a daughter. Years passed, the girl had grown to womanhood, and her captor declared himself her lover. She seemed not ill pleased at this, for she consented to be his wife. After the betrothal the chief joined a hunting party and was absent for a time. On his return the girl was gone. A trader who had been bartering merchandise for furs had seen her, had been inspired by passion, and, favored by suave manners and a white skin, he had won in a day a stronger affection than the Indian could claim after years of loving watchfulness.

When this discovery was made the chief, without a word, set off on the trail, and by broken twig, by bended grass and footprints at the brook-edge,

he followed their course until he found them resting beneath a tree. The girl sprang from her new lover's arms with a cry of fear as the savage, with knife and tomahawk girt upon him, stepped into view, and she would have clasped his knees, but he motioned her away; then, ordering them to continue their march, he went behind them until they had reached a fertile spot on the Ashley, near the present site of Charleston, where he halted. "Though guilty, you shall not die," said he to the woman; then, to his rival, "You shall marry her, and a white priest shall join your hands. Here is your future home. I give you many acres of my land, but look that you care for her. As I have been merciful to you, do good to her. If you treat her ill, I shall not be far away."

The twain were married and went to live on the acres that had been so generously ceded to them, and for a time all went well; but the true disposition of the husband, which was sullen and selfish, soon began to disclose itself; disagreements arose, then quarrels; at last the man struck his wife, and, seizing the deed of the Accabee land and a paper that he had forced her to sign without knowing its contents, he started for the settlements, intending to sell the property and sail for England. On the edge of the village his flight was stayed by a tall form that arose in his path—that of the Indian. "I gave you all," said the chief, "the woman who should have been my wife, and then my land. This is your thanks. You shall go no farther."

With a quick stroke of the axe he cleft the skull of the shrinking wretch, and then, cutting off his scalp, the Indian ran to the cottage where sat the abandoned wife, weeping before the embers of her fire. He roused her by tossing on fresh fuel, but she shrank back in grief and shame when she saw who had come to her. "Do not fear," he said. "The man who struck you meant to sell your home to strangers"—and he laid the deed of sale before her, "but he will never play you false or lay hands on you again. Look!" He

tossed the dripping scalp upon the paper. "Now I leave you forever. I cannot take you back among my people, who do not know deceit like yours, nor could I ever love you as I did at first." Turning, without other farewell he went out at the door. When this gift of Accabee land was sold—for the woman could no longer bear to live on it, but went to a northern city—a handsome house was built by the new owner, who added game preserves and pleasure grounds to the estate, but it was "haunted by a grief." Illness and ill luck followed the purchase, and the house fell into ruin.

TOCCOA FALLS

Early in the days of the white occupation of Georgia a cabin stood not far from the Falls of Toccoa (the Beautiful). Its only occupant was a feeble woman, who found it ill work to get food enough from the wild fruits and scanty clearing near the house, and she had nigh forgotten the taste of meat; for her two sons, who were her pride no less than her support, had been killed by savages. She often said that she would gladly die if she could harm the red men back, in return for her suffering—which was not Christian doctrine, but was natural. She was brooding at her fire, one winter evening, in wonder as to how one so weak and old as she could be revenged, when her door was flung open and a number of red men filled her cabin. She hardly changed countenance. She did not rise. "You may take my life," she said, "for it is useless, now that you have robbed it of all that made it worth living."

"Hush!" said the chief. "What does the warrior want with the scalps of women? We war on your men because they kill our game and steal our land."

"Is it possible that you come to our homes except to kill?"

"We are strangers and have lost our way. You must guide us to the foot of Toccoa and lead us to our friends."

"I lead you? Never!"

The chief raised his axe, but the woman did not flinch. There was a pause, in which the iron still hung menacing. Suddenly the dame looked up and said, "If you promise to protect me, I will lead you."

The promise was given and the band set forth, the aged guide in advance, bending against the storm and clasping her poor rags about her. In the darkest part of the wood, where the roaring of wind and groaning of branches seemed the louder for the booming of waters, she cautioned the band to keep in single file, but to make haste, for the way was far and the gloom was thickening. Bending their heads against the wind they pressed forward, she in advance. Suddenly, yet stealthily, she sprang aside and crouched beneath a tree that grew at the very brink of the fall. The Indians came on, following blindly, and in an instant she descried the leader as he went whirling over the edge, and one after another the party followed. When the last had gone to his death she arose to her feet with a laugh of triumph. "Now I, too, can die!" she cried. So saying, she fell forward into the grayness of space.

TWO LIVES FOR ONE

The place of Macon, Georgia, in the early part of this century was marked only by an inn. One of its guests was a man who had stopped there on the way to Alabama, where he had bought land. The girl who was, to be his wife was to follow in a few days. In the morning when he paid his reckoning he produced a well-filled pocket-book, and he did not see the significant look that passed between two rough black-bearded fellows who had also spent the night there, and who, when he set forth, mounted their horses and offered to keep him company. As they rode through the deserted village of Chilicte one of the twain engaged the traveller in talk while the other, falling a little behind, dealt him a blow with a loaded whip that unseated him. Divining their purpose, and lacking weapons for his own defence, he begged for mercy, and asked to be allowed to return to his bride to be, but the robbers had already made themselves liable to penalty, and two knife-thrusts in the breast silenced his appeals. The money was secured, the body was dropped into a hollow where the wolves would be likely to find and mangle it, and the outlaws went on their way.

Men of their class do not keep money long, and when the proceeds of the robbery had been wasted at cards and in drink they separated. As in fulfilment of the axiom that a murderer is sure to revisit the scene of his crime, one of the men found himself at the Ocmulgee, a long time afterward, in sight of the new town—Macon. In response to his halloo a

skiff shot forth from the opposite shore, and as it approached the bank he felt a stir in his hair and a touch of ice at his heart, for the ferryman was his victim of years ago. Neither spoke a word, but the criminal felt himself forced to enter the boat when the dead man waved his hand, and he was rowed across, his horse swimming beside the skiff. As the jar of the keel was felt on the gravel he leaped out, urged his horse to the road, sprang to the saddle, and rushed away in an agony of fear, that was heightened when a hollow voice called, "Stay!"

After a little he slackened pace, and a farmer, who was standing at the roadside, asked, in astonishment, "How did you get across? There is a freshet, and the ferryman was drowned last night." With a new thrill he spurred his horse forward, and made no other halt until he reached the tavern, where he fell in a faint on the steps, for the strain was no longer to be endured. A crowd gathered, but he did not see it when he awoke—he saw only one pair of eyes, that seemed to be looking into his inmost soul—the eyes of the man he had slain. With a yell of terror and of insane fury he rushed upon the ghost and thrust a knife into its breast. The frenzy passed. It was no ghost that lay on the earth before him, staring up with sightless eyes. It was his fellow-murderer—his own brother. That night the assassin's body hung from a tree at the cross-roads.

A GHOSTLY AVENGER

In Cuthbert, Georgia, is a gravestone thus inscribed: "Sacred to the memory of Jim Brown." No date, no epitaph—for Jim Brown was hanged. And this is the story: At the close of the Civil War a company of Federal soldiers was stationed in Cuthbert, to enforce order pending the return of its people to peaceful occupations. Charles Murphy was a lieutenant in this company. His brother, an officer quartered in a neighboring town, was sent to Cuthbert one day to receive funds for the payment of some men, and left camp toward evening to return to his troop. That night Charles Murphy was awakened by a violent flapping of his tent. It sounded as though a gale was coming, but when he arose to make sure that the pegs and poles of his canvas house were secure, the noise ceased, and he was surprised to find that the air was clear and still. On returning to bed the flapping began again, and this time he dressed himself and went out to make a more careful examination. In the shadow of a tree a man stood beckoning. It was his brother, who, in a low, grave voice, told him that he was in trouble, and asked him to follow where he should lead him. The lieutenant walked swiftly through fields and woods for some miles with his relative—he had at once applied for and received a leave of absence for a few hours—and they descended together a slope to the edge of a swamp, where he stumbled against something. Looking down at the object on which he had tripped, he saw that it was his brother's corpse—not newly dead, but cold and rigid—the pockets rifled, the clothing soaked with mire and blood.

Dazed and terrified, he returned to camp, roused some of his men, and at daybreak secured the body. An effort to gain a clue to the murderer was at once set on foot. It was not long before evidence was secured that led to the arrest of Jim Brown, and there was a hint that his responsibility for the crime was revealed through the same supernatural agency that had apprised Lieutenant Murphy of his bereavement. Brown was an ignorant farm laborer, who had conceived that it was right to kill Yankees, and whose cupidity had been excited by learning that the officer had money concealed about him. He had offered, for a trifling sum, to take his victim by a short cut to his camp, but led him to the swamp instead, where he had shot him through the heart. On the culprit's arrival in Cuthbert he was lynched by the soldiers, but was cut down by their commander before life was extinct, and was formally and conclusively hanged in the next week, after trial and conviction.

THE WRAITH RINGER OF ATLANTA

A man was killed in Elliott Street, Atlanta, Georgia, by a cowardly stroke from a stiletto. The assassin escaped. Strange what a humming there was in the belfry of St. Michael's Church that night! Had the murderer taken refuge there? Was it a knell for his lost soul, chasing him through the empty streets and beginning already an eternal punishment of terror? Perhaps the guilty one did not dare to leave Atlanta, for the chimes sang in minor chords on several nights after. The old policeman who kept ward in an antiquated guardhouse that stood opposite the church—it was afterward shaken down by earthquake—said that he saw a human form, which he would avouch to be that of the murdered man, though it was wrapped in a cloak, stalk to the doors, enter without opening them, glide up the winding stair, albeit he bent neither arm nor knee, pass the ropes by which the chimes were rung, and mount to the belfry. He could see the shrouded figure standing beneath the gloomy mouths of metal. It extended its bony hands to the tongues of the bells and swung them from side to side, but while they appeared to strike vigorously they seemed as if muffled, and sent out only a low, musical roar, as if they were rung by the wind. Was the murderer abroad on those nights? Did he, too, see that black shadow of his victim in the belfry sounding an alarm to the sleeping town and appealing to be avenged? It may be. At all events, the apparition boded ill to others, for, whenever the chimes were rung by spectral hands, mourners gathered at some bedside within hearing

of them and lamented that the friend they had loved would never know them more on earth.

THE SWALLOWING EARTHQUAKE

The Indian village that in 1765 stood just below the site of Oxford, Alabama, was upset when the news was given out that two of the squaws had given simultaneous birth to a number of children that were spotted like leopards. Such an incident betokened the existence of some baneful spirit among them that had no doubt leagued itself with the women, who were at once tried on the charge of witchcraft, convicted, and sentenced to death at the stake, while a watch was to be set on the infants, so early orphaned, lest they, too, should show signs of malevolent possession. The whole tribe, seventeen hundred in number, assembled to see the execution, but hardly were the fires alight when a sound like thunder rolled beneath their feet, and with a hideous crack and groan the earth opened and nearly every soul was engulfed in a fathomless and smoking pit-all, indeed, save two, for a couple of young braves who were on the edge of the crowd flung themselves flat on the heaving ground and remained there until the earthquake wave had passed. The hollow afterward filled with water and was called Blue Pond. It is popularly supposed to be fathomless, but it was shown that a forest once spread across the bottom, when, but a few years ago, a great tree arose from the water, lifting first its branches, then turning so as to show its roots above the surface, and afterward disappeared.

LAST STAND OF THE BILOXI

The southern part of this country was once occupied by a people called the Biloxi, who had kept pace with the Aztecs in civilization and who cultivated especially the art of music. In lives of gentleness and peace they so soon forgot the use of arms that when the Choctaws descended on their fields they were powerless to prevent the onset. Town after town they evacuated before the savages, and at last the Biloxi, reduced to a few thousands, were driven to the mouth of the Pascagoula River, Mississippi, where they intrenched themselves, and for a few months withstood the invaders. But the time came when their supplies were exhausted, and every form was pinched with hunger. Flight was impossible. Surrender commonly meant slaughter and outrage. They resolved to die together.

On a fair spring morning the river-ward gates of their fort were opened and the survivors of that hapless tribe marched forth, their chief in advance, with resolution on his wasted face, then the soldiers and counsellors, the young men, the women and children, and the babes asleep on the empty breasts of their mothers. As they emerged from the walls with slow but steady step they broke into song, and their assailants, who had retired to their tents for their meal, listened with surprise to the chorus of defiance and rejoicing set up by the starving people. Without pause or swerving they entered the bay and kept their march. Now the waters closed over the chief, then the soldiers—at last only a few voices of women were heard in the

chant, and in a few moments all was still. Not one shrank from the sacrifice. And for years after the echo of that death-song floated over the waves.

Another version of the legend sets forth that the Biloxi believed themselves the children of the sea, and that they worshipped the image of a lovely mermaid with wondrous music. After the Spaniards had come among this gay and gentle people, they compelled them, by tyranny and murder, to accept the religion of the white man, but of course it was only lip-service that they rendered at the altar. The Biloxi were awakened one night by the sound of wings and the rising of the river. Going forth they saw the waters of Pascagoula heaped in a quivering mound, and bright on its moonlit crest stood a mermaid that sang to them, "Come to me, children of the sea. Neither bell, book, nor cross shall win you from your queen." Entranced by her song and the potency of her glances, they moved forward until they encircled the hill of waters. Then, with hiss and roar, the river fell back to its level, submerging the whole tribe. The music that haunts the bay, rising through the water when the moon is out, is the sound of their revels in the caves below—dusky Tannhausers of a southern Venusberg. An old priest, who was among them at the time of this prodigy, feared that the want of result to his teachings was due to his not being in a perfect state of grace. On his death-bed he declared that if a priest would row to the spot where the music sounded, at midnight on Christmas, and drop a crucifix into the water, he would instantly be swallowed by the waves, but that every soul at the bottom would be redeemed. The souls have never been ransomed.

THE SACRED FIRE OF NACHEZ

The Indians of the South, being in contact with the civilized races of Central America, were among the most progressive and honorable of the red men. They were ruled by intelligence rather than force, and something of the respect that Europeans feel for their kingly families made them submit to woman's rule. The valley of Nacooche, Georgia, indeed, perpetuates in its name one of these princesses of a royal house, for though she ruled a large tribe with wisdom she was not impervious to the passions of common mortals. The "Evening Star" died by her own hand, being disappointed in love affair. Her story is that of Juliet, and she and her lover—united in death, as they could not be in life—are buried beneath a mound in the centre of the valley.

The Indians of that region had towns built for permanency, and possessed some knowledge of the arts, while in religion their belief and rites were curiously like those of the Persian fire-worshippers. It was on the site of the present city in Mississippi which bears their name that the Natchez Indians built their Temple of the Sun. When it was finished a meteor fell from heaven and kindled the fire on their altar, and from that hour the priests guarded the flame continually, until one night when it was extinguished by mischance. This event was believed to be an omen, and the people so took it to heart that when the white men came, directly after, they had little courage

to prosecute a war, and fell back before the conqueror, never to hold their ancient home again.

PASS CHRISTIAN

Senhor Vineiro, a Portuguese, having wedded Julia Regalea, a Spaniard, in South America, found it needful to his fortunes to leave Montevideo, for a revolution was breeding, and no less needful to his happiness to take his wife with him from that city, for he was old and she was young. But he chose the wrong ship to sail on, for Captain Dane, of the Nightingale, was also young, presentable, and well schooled, but heartless. On the voyage to New Orleans he not only won the affection of the wife, but slew the husband and flung his body overboard. Vainly the wife tried to repress the risings of remorse, and vainly, too, she urged Dane to seek absolution from her church. She had never loved her husband, and she had loved Dane from the first, but she was not at heart a bad woman and her peace was gone. The captain was disturbed and suspicious. His sailors glanced at him out of the corners of their eyes in a way that he did not like. Had the woman in some unintentional remark betrayed him? Could he conceal his crime, save with a larger one?

Pass Christian was a village then. On a winter night its people saw a glare in the sky, and hurrying to their doors found a ship burning in the gulf. Smacks and row-boats put off to the rescue, but hardly were they under way ere the ship disappeared as suddenly as if the sea had swallowed it. As the night was thick the boats returned, but next morning five men were encountered on the shore-all that were left of the crew of the Nightingale.

Captain Dane was so hospitably received by the people of the district, and seemed to take so great a liking for the place, that he resolved to live there. He bought a plantation with a roomy old house upon it and took his fellow-survivors there to live, as he hoped, an easy life. That was not to be. Yellow fever struck down all the men but Dane, and one of them, in dying, raved to his negro nurse that Dane had taken all the treasure from the ship and put it into a boat, after serving grog enough to intoxicate all save the trusted ones of the crew; that he and his four associates fired the ship and rowed away, leaving an unhappy woman to a horrible fate. Senhora Vineiro was pale but composed when she saw the manner of death she was to die. She brought from her cabin a harp which had been a solace of her husband and herself and began to play and sing an air that some of the listeners remembered. It was an "Ave Maria," and the sound of it was so plaintive that even Dane stopped rowing; but he set his teeth when his shoe touched the box of gold at his feet and ordered the men to row on. There was an explosion and the vessel disappeared. On reaching shore the treasure was buried at the foot of a large oak.

This story was repeated by the nurse, but she was ignorant, she had no proofs, so it was not generally believed; yet there was a perceptible difference in the treatment of Dane by his neighbors, and among the superstitious negroes it was declared that he had sold himself to the devil. If he had, was it an air from hell that sounded in his ears when he was alone?—the "Ave Maria" of a sinning but repentant woman. The coldness and suspicion were more than he could stand. Besides, who could tell? Evidence might be found against him. He would dig up his treasure and fly the country. It was a year from the night when he had fired his ship. Going out after dark, that none might see him, he stole to the tree and began to dig. Presently a red light grew through the air, and looking up he saw a flaming vessel advancing over the sea. It stopped, and he could see men clambering into a boat at its side. They rowed toward him with such miraculous speed

that the ocean seemed to steam with a blue light as they advanced. He stood like a stone, for now he could see the faces of the rowers, and every one was the face of a corpse—a corpse that had been left on board of that vessel and had been in the bottom of the sea for the last twelvemonth. They sprang on shore and rushed upon him. Next morning Dane's body was found beneath the oak with his hands filled with gems and gold.

THE UNDER LAND

When the Chatas looked into the still depths of Bayou Lacombe, Louisiana, they said that the reflection of the sky was the empyrean of the Under Land, whither all good souls were sure to go after death. Their chief, Opaleeta, having fallen into this bayou, was so long beneath the water that he was dead when his fellows found him, but by working over him for hours, and through resort to prayers and incantations of medicine men, his life returned and he stood on his feet once more. Then he grieved that his friends had brought him back, for he had been at the gates of the Under Land, where the air is blithe and balmy, and so nourishing that people live on it; where it is never winter; where the sun shines brightly, but never withers and parches; and where stars dance to the swing of the breezes. There no white man comes to rob the Indian and teach him to do wrong. Gorgeous birds fly through changing skies that borrow the tints of flowers, the fields are spangled with blossoms of red and blue and gold that load each wind with perfume, the grass is as fine as the hair of deer, and the streams are thick with honey.

At sunset those who loved each other in life are gathered to their lodges, and raise songs of joy and thankfulness. Their voices are soft and musical, their faces are young again and beam with smiles, and there is no death. It was only the chiefs who heard his story, for, had all the tribe known it, many who were old and ill and weary would have gone to the bayou, and

leaped in, to find that restful, happy Under Land. Those who had gone before they sometimes tried to see, when the lake was still and dappled with pictures of sunset clouds, but the dead never came back—they kept away from the margin of the water lest they should be called again to a life of toil and sorrow. And Opaleeta lived for many years and ruled his tribe with wisdom, yet he shared in few of the merry-makings of his people, and when, at last, his lodge was ready in the Under Land, he gave up his life without a sigh.

*** END OF THE PROJECT GUTENBERG EBOOK MYTHS AND
LEGENDS OF OUR OWN LAND — VOLUME 05 : LIGHTS AND
SHADOWS OF THE SOUTH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.